

*** § 252-a. Fees.** (a) Notwithstanding any other provision of law, every county, including the city of New York, may adopt a local law authorizing its probation department which is ordered to conduct an investigation pursuant to section six hundred fifty-three of this act, to be entitled to a fee of not less than fifty dollars and not more than five hundred dollars from the parties in such proceeding for performing such investigation. Such fee shall be based on the party's ability to pay the fee and the schedule for payment shall be fixed by the court issuing the order for investigation, pursuant to the guidelines issued by the office of probation and correctional alternatives, and may in the discretion of the court be waived when the parties lack sufficient means to pay the fee. The court shall apportion the fee between the parties based upon the respective financial circumstances of the parties and the equities of the case.

(b) Fees pursuant to this section shall be paid directly to the local probation department to be retained and utilized for local probation services, and shall not be considered by the office of probation and correctional alternatives when determining state aid pursuant to section two hundred forty-six of the executive law.

* NB Expires September 1, 2027